

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.** _____
EDICKSON GERALDO, Purchased _____
Plaintiff, Plaintiff designates BRONX
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**CITY OF NEW YORK,
FRANCIS ZITO,
JOHN DOE,**

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
February 8, 2021

/s/
ERIC D. LEVY, ESQ.
Pawar Law Group, P.C.
Attorneys for Plaintiff
20 Vesey Street, Suite 1410
New York, New York 10007
Tel. No.: (212) 571-0805

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
EDICKSON GERALDO

Index No.:

Plaintiff,

-against-

COMPLAINT

CITY OF NEW YORK,
FRANCIS ZITO,
JOHN DOE,

Defendants.

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The plaintiff, **EDICKSON GERALDO** [hereinafter **MR. GERALDO**] by his attorney, **ERIC LEVY, ESQ.**, complaining of the defendants respectfully alleges, upon information and belief, as follows:

1. Defendant **FRANCIS ZITO** [hereinafter **ZITO**] *is/was* an NYPD officer at the time of the incident assigned to the 52nd precinct.
2. Defendant **JOHN DOE** [hereinafter **DOE**] *is/was* an NYPD officer at the time of the incident assigned to the 52nd precinct.
3. On September 21, 2016, plaintiff, MR. GERALDO was arrested and seized by **ZITO and DOE**. Plaintiff, MR. GERALDO lives at 429 East 156 St. in the Bronx, New York.
4. On September 21, 2016, around 1:30 a.m., **MR. GERALDO**, with a passenger in the front passenger's seat, was driving his mother's 2013 BMW 650 coupe, on Bedford Park Ave, in the vicinity of Briggs Ave. in the Bronx.

5. **MR. GERALDO** was observing all vehicle and traffic laws and regulations.
6. At approximately 1:30 a.m. **MR. GERALDO** was directed to pull over by a police SUV; he was approached by individuals who turned out to be **ZITO AND DOE**.
7. Defendants approached Plaintiff's car with their guns drawn and pointed at plaintiff; at that time, **ZITO** asked to see **MR. GERALDO**'s license, registration and insurance for the vehicle; all of which were up to date and valid.
8. **MR. GERALDO** stated that he had done nothing wrong, but defendants initially claimed that they stopped Plaintiff because the tint in the windows was too dark; this was clearly a pretextual reason as there was no tint on the front or rear window and the driver's side and passenger windows were both down since prior to Plaintiff being pulled over.
9. Defendants ordered Plaintiff and the passenger out of the vehicle, searched both the car and through his pockets and under his clothes, recovered nothing evidentiary in nature, then alleged that Plaintiff was intoxicated; plaintiff denied this but was handcuffed and arrested, even though he had committed no crime and dragged to the 52nd Pct.
10. Although the passenger could have taken Plaintiff's car, defendant's chose to drive it, without Plaintiff's permission, to the precinct.
11. Plaintiff took a breathalyzer exam at the precinct, which registered that he was neither intoxicated nor even impaired by alcohol; Plaintiff also took field sobriety tests that he passed.

12. At some point, while Plaintiff was in custody at the precinct, Defendants conducted an illegal search of his vehicle and alleged to have recovered narcotics.

13. **GERALDO** was arraigned on Bronx Dkt: 2016BX041374, bail was set in the amount of \$10,000 bond or cash and Plaintiff was held in jail for more than 4 days before bail was posted.

14. **GERALDO** had to appear in court more than TWENTY (20) times before the false charges against him were dismissed on March 28, 2018.

15. Defendant **CITY OF NEW YORK ("CITY")** is a municipal corporation which oversees the NYPD.

AS AND FOR A FIRST CAUSE OF ACTION

(False Arrest/Seizure under 42 U.S.C. 1983)

16. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

17. As to September 21, 2016 incident, defendants **ZITO AND DOE** arrested plaintiff **GERALDO** on false charges. They held him for 4 days without probable cause. As a result of defendants' conduct plaintiffs suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION

(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

18. Plaintiffs repeat and reallege all of the foregoing paragraphs as if fully set forth herein.

19. Defendants **ZITO AND DOE** falsified police documents and initiated criminal proceedings against the plaintiff **GERALDO**.

20. Defendants **ZITO AND DOE** knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had possessed drugs. All the criminal charges against the plaintiff were dismissed in his favor. **GERALDO** had to appear before the criminal court on at least 20 times before the false charges were dismissed.

21. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Municipal Liability against the CITY)

22. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

23. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

24. The aforementioned customs, usages, and practices of the **CITY** included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the **CITY** engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff's rights as described herein.

25. In addition, the Defendant's superior officers whose duty it was to review and screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

26. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the **CITY** to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

27. Furthermore, police officers from the NYPD retain old photographs of arrestees and use them illegally to show victims of crime, in order to close out cases even when the photographs do not represent the actual perpetrator of the crime. These photographs and other documents are supposed to be sealed pursuant to Section 160.50 of the NYS penal Code. Yet, on numerous occasions, the NYPD officers retain them and use them for unlawful purposes. The NYPD has not mechanism set to train officers on how to destroy files, photographs and criminal court and arrest paperwork after a case has been dismissed and sealed. This lack of inaction is a *defacto* policy that led to violation of plaintiff's constitutional rights.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

(B) Punitive damages in an amount to be determined by a jury:

(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action; and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
February 8, 2021

Respectfully,

/s/
ERIC LEVY, ESQ.
Pawar Law Group, P.C.
Attorneys for Plaintiffs
20 Vesey Street, Suite 1210
New York, New York 10007
Tel. No.: (212) 571-0805